

Court No. - 29

Case :- WRIT - C No. - 40673 of 2024

Petitioner :- Satish Chandra

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Pradyumn Kumar

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.

Hon'ble Vivek Kumar Birla,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

1. Heard Sri Pradyumn Kumar, learned counsel for the petitioner as well as learned Standing Counsel appearing for the State respondents no. 1 and 2 and Sri Sri Baleshwar Chaturvedi, learned counsel for the respondent no. 3 and 4-Pashimanchal Vidhut Vitran Nigam Limited.

2. Present petition has been filed for quashing impugned recovery citation dated 24.8.2024 passed by the respondent no. 3 passed by the respondent no. 3. It is further prayed that the respondent no. 3 to permit the petitioner to deposit the actual usage of amount of dues electric bill in twelve easy installments.

3. Learned counsel for the respondents 3 and 4-Pashimanchal Vidhut Vitran Nigam Limited has gracefully submitted that in case the petitioner files an application under Clause 6.14 of the UP Electricity Supply Code, 2005 for granting installment facility, the same shall be considered by the respondent no. 3-Executive Engineer, Pashimanchal Vidhut Vitran Nigam Limited, Agra on its own merit.

4. Present petition is accordingly disposed of with liberty to the petitioner to avail the aforesaid facility by filing a representation/application before the respondent no. 3-Executive Engineer, Pashimanchal Vidhut Vitran Nigam Limited, Agra under Clause 6.14 of the UP Electricity Supply Code, 2005 along with certified copy of this order within two weeks from today. The same shall be considered and decided by the respondent no. 3-Executive Engineer, Pashimanchal Vidhut Vitran Nigam Limited, Agra on its own merit.

5. Petitioner is also at liberty to avail the facility of one time settlement (OTS), if there is any.

6. It is made clear that this Court has not considered the merits of the case of the petitioner.

Order Date :- 6.12.2024

Abhishek